

Court No. - 42

Case :- WRIT - C No. - 3838 of 2023

Petitioner :- Narendra Singh Pawar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Ajay
Singh,Narendra Kumar Tiwari

Hon'ble Suneet Kumar,J.

Hon'ble Rajendra Kumar-IV,J.

The matter pertains to recovery.

It is submitted that it is not cognizable by this Bench.

Registry is directed to place this matter before appropriate Bench after obtaining fresh report.

List on 23.02.2023, as fresh.

When the case is next listed, the name of Sri Pranjal Mehrotra, be shown as Counsel for the respondent.

Order Date :- 15.2.2023

I.A.Siddiqui

Court No. - 21

Case :- WRIT - C No. - 3838 of 2023

Petitioner :- Narendra Singh Pawar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Ajay Singh,Narendra Kumar
Tiwari,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

As prayed, list as fresh on 1.3.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.2.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 3838 of 2023

Petitioner :- Narendra Singh Pawar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Ajay Singh,Narendra Kumar
Tiwari,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Sri Pranjal Mehrotra, learned counsel for the respondent-
Electricity Department seeks time to complete his instructions.

Put up as fresh on 3.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.3.2023

SL

Court No. - 21

Case :- WRIT - C No. - 3838 of 2023

Petitioner :- Narendra Singh Pawar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Ajay Singh,Narendra Kumar Tiwari,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner is an erstwhile Director of respondent no. 6. He has challenged the demand notice issued against him by respondent no. 5 for recovery of dues of respondent no. 6 on the ground that he cannot be held personally liable for the dues of the company. The specific case of the petitioner is that he had never given any guarantee to the respondents for securing the loan taken by the respondent no. 6. It is also urged by the counsel for the petitioner that Clause 4.3 (f) (v) of the Electricity Supply Code, 2005 is ultra vires, the Electricity Act, 2003, which does not contain any provision for making the directors of a corporate entity personally liable for its dues. He points out that same issue is also involved in Writ C No. 40469 of 2016 filed by the petitioner wherein this Court vide order dated 30.08.2016 had issued notices to the Advocate General.

Issue notice to the respondent no. 6 fixing 03.04.2023. The petitioner will serve respondent no. 6 by dasti as well as by registered post. Steps may be taken within a week. Affidavit of service shall be filed on or before the next date fixed.

Let the instant matter be connected with the Writ C No. 40469 of 2016 and listed alongwith it on 03.04.2023.

In the meantime, the parties will exchange the pleadings.

The respondents are restrained from recovering any amount from the petitioner in pursuance of the impugned recovery certificate dated 19.01.2023. However, instant order will not preclude the respondents from recovering its dues by other legal means against persons liable.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.3.2023

Jaswant